

The National Dental Commission Act, 2023

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Union of India - Act

The National Dental Commission Act, 2023

UNION OF INDIA

India

The National Dental Commission Act, 2023

Act 21 of 2023

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THE NATIONAL DENTAL COMMISSION ACT, 2023 NO. 21 OF 2023

[11th August, 2023.]

An Act to regulate the profession of dentistry in the country, to provide for quality and affordable dental education, to make accessible high quality oral healthcare and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventy-fourth Year of the Republic of India as follows:?

Chapter I

PRELIMINARY

1 Short title, extent and commencement.

(1)

This Act may be called the National Dental Commission Act, 2023.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint; and different dates may be appointed for different provisions of this Act and any reference in any such provision to the commencement of this Act shall be construed as a reference to the coming into force of that provision.

2 Definitions

In this Act, unless the context otherwise requires,?

(a)

"Autonomous Board" means any of the Autonomous Boards constituted under section 16;

(b)

"Chairperson" means the Chairperson of the National Dental Commission appointed under section 4;

(c)

"Commission" means the National Dental Commission constituted under section 3;

(d)

"Council" means the Dental Advisory Council constituted under section 11;

(e)

"Dental Assessment and Rating Board" means the Board constituted under section 16;

(f)

"dental auxiliary" includes a dental hygienist or a dental mechanic or a dental operating room assistant or such other category as may be specified by the Commission;

(g)

"dental hygienist" means a person not being a dentist or a medical practitioner who scales, cleans or polishes teeth, or gives instruction in dental hygiene;

(h)

"dental institution" means any institution within or outside India which grants degrees, diplomas, certificates for certification courses or licences in dentistry and includes affiliated colleges, deemed to be Universities and institutions mentioned in the Schedule;

(i)

"dental mechanic" means a person qualified to perform laboratory work required for the prosthetic rehabilitation of dental and maxillofacial structures and orthodontic appliances;

(j)

"dental operating room assistant" means a person who assists the dentist in sterilising and handing over instruments as required by the dentist at the chair side;

(k)

"dentist" means a person who practices dentistry;

(l)

"dentistry" includes the science, practice and research in dental and oral health, directed towards?

(i)

facilitating healthy development of dentition, jaws and dentofacial structures;

(ii)

prevention of oral diseases and promotion of oral health;

(iii)

diagnosis and use of diagnostic tests, investigations and procedure to decide the normal and abnormal state or diseases of teeth, gums, jaws and related tissues necessary for the functions of the oral cavity;

(iv)

performing procedures for the optimisation of dental and oral health, which may include restoration, rehabilitation, surgery or a combination thereof, to restore the functions, structural anatomy and aesthetics of the stomatognathic system and the masticatory apparatus;

(v)

creating awareness and working knowledge of the effects of systemic health on dentition and oral cavity and to perform the duties of an active member of the healthcare team, including basic life support;

(vi)

promoting good systemic health through diagnosis and necessary interventions related to oral health conditions; and
(vii)

bringing awareness of oral health related issues of the society and of nation and to facilitate implementation of the updated policies of the Government or Government bodies in this regard;

(m)

"Ethics and Dental Registration Board" means the Board constituted under section 16;

(n)

"Fund" means the National Dental Commission Fund referred to in sub-section (1) of section 39;

(o)

"leader" means the Head of a Department or the Head of an Institute or organisation;

(p)

"licence" means a licence to practice dentistry granted under sub-section (1) of section 31;

(q)

"Member" means a Member of the Commission appointed under section 4 and includes the Chairperson thereof, or, as the case may be, a Member of the Autonomous Board referred to in section 17 and includes the President thereof;

(r)

"National Register" means the National Register for Dentists or the National Register for Dental Auxiliaries, as the case may be, maintained by the Ethics and Dental Registration Board under section 30;

(s)

"notification" means a notification published in the Official Gazette and the expression "notify" shall be construed accordingly;

(t)

"prescribed" means prescribed by rules made under this Act;

(u)

"President" means the President of an Autonomous Board appointed under section 18;

(v)

"recognised dental qualification" means a dental qualification recognised under section 33 or section 34 or section 35, as the case may be;

(w)

"regulations" means the regulations made by the Commission under this Act;

(x)

"registered professional" means any dentist or dental auxiliary who is registered in the National Register or the State Register under section 30;

(y)

"Schedule" means the Schedule to this Act;

(z)

"State Dental Council" means a dental council constituted under any law for the time being in force in any State or Union territory for regulating the practice and registration of practitioners of dentistry in that State or Union territory and includes a Joint Dental Council referred to in sub-section (7) of section 29;

(za)

"State Register" means the State Register for Dentists or the State Register for Dental Auxiliaries, as the case may be, maintained under any law for the time being in force in any State or Union territory for registration of dentists or dental auxiliaries, as the case may be;

(zb)

"Under-Graduate and Post-Graduate Dental Education Board" means the Board constituted under section 16;

(zc)

"University" shall have the same meaning as assigned to it in clause (f) of section 2 of the University Grants Commission Act, 1956 and includes a health University.

Chapter II

NATIONAL DENTAL COMMISSION

3. Constitution of National Dental Commission.

(1)

The Central Government shall, by notification in the Official Gazette, with effect from such date as it may appoint, constitute a Commission, to be known as the National Dental Commission, to exercise the powers conferred upon, and to perform the functions assigned to it, under this Act.

(2)

The Commission shall be a body corporate by the name aforesaid, having perpetual succession and a common seal, with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall, by the said name, sue or be sued.

(3)

The head office of the Commission shall be at New Delhi

4.

Composition of Commission.

(1)

The Commission shall consist of the following persons to be appointed by the Central Government, namely:?

(a)

a Chairperson;

(b)

eight ex officio Members; and

(c)

twenty-four part-time Members.

(2)

The Chairperson shall be a dentist of outstanding ability, proven administrative capacity and integrity, possessing a postgraduate degree in dentistry from any University or institutes of national importance and having experience of not less than twenty years in the field of dentistry, out of which at least ten years shall be as a leader in the area of dental education.

(3)

The following persons shall be the ex officio Members of the Commission, namely:?

(a)

the President of the Under-Graduate and Post-Graduate Dental Education Board;

(b)

the President of the Dental Assessment and Rating Board;

(c)

the President of the Ethics and Dental Registration Board;

(d)

the Director General of Health Services, Directorate General of Health Services, New Delhi;

(e)

Chief of the Centre for Dental Education and Research, All India Institute of Medical Sciences, New Delhi;

(f)

Head of the Oral Health Sciences Centre, Postgraduate Institute of Medical Education and Research, Chandigarh;

(g)

one person, not below the rank of Joint Secretary to the Government of India, to represent the Ministry of Health and Family Welfare, to be nominated by that Ministry;

(h)

the Chairperson, National Medical Commission or nominee from that Commission.

(4)

The following persons shall be appointed as part-time Members of the Commission, namely:?

(a)

three Members, to be appointed from amongst persons of ability, integrity and standing, who have special knowledge and professional experience in such areas including management, law, medical ethics, health research, consumer or patient rights advocacy, science and technology and economics, in such manner as may be prescribed, for a term of four years;

(b)

ten Members to be appointed on rotational basis from amongst the nominees of the States and Union territories under clauses (c) and (d) of sub-section (2) of section 11 in the Dental Advisory Council, in such manner as may be prescribed, for a term of two years;

(c)

nine members to be appointed on rotational basis from amongst the nominees of the States and Union territories under clause (e) of sub-section (2) of section 11 in the Dental Advisory Council, in such manner as may be prescribed, for a term of two years;

Composition of Commission.

(d)

two dental faculties, from any Central or State or Autonomous Government Institutes, doing exemplary work in the field of dental education, to be nominated by the Central Government, in such manner as may be prescribed, for a term of four years.

5.

Search-cum-Selection Committee for appointment of Chairperson and Members.

(1)

The Central Government shall appoint?

(i)

the Chairperson referred to in sub-section (2) of section 4;

(ii)

part-time Members referred to in clause (a) of sub-section (4) of section 4;

(iii)

the Secretary referred to in section 8; and

(iv)

the President and Members of Autonomous Boards referred to in section 16, on the recommendation of a Search-cum-Selection Committee consisting of?

(a)

the Cabinet Secretary?Chairperson;

(b)

three experts, possessing outstanding qualifications and experience of not less than twenty-five years in the field of dental education, public health education and health research, to be nominated by the Central Government, in such manner as may be prescribed?Members;

(c)

one person, possessing outstanding qualifications and experience of not less than twenty-five years in the field of management or law or economics or science and technology, to be nominated by the Central Government, in such manner as may be prescribed?Member;

(d)

the Secretary to the Government of India in charge of the Ministry of Health and Family Welfare, to be the Convener?Member.

(2)

The Central Government shall, within one month from the date of occurrence of any vacancy, including by reason of death, resignation or removal, of the Chairperson or Member or Secretary of the Commission or the President or Member of the Autonomous Board, as the case may be, or within three months before the end of tenure of such person, make a reference to the Search-cum-Selection Committee for filling up of the vacancy.

(3)

The Search-cum-Selection Committee shall recommend a panel of at least three names for every vacancy referred to it.

(4)

The Search-cum-Selection Committee shall, before recommending any person for appointment as the Chairperson or Member or Secretary, satisfy itself that such person does not have any financial or other interest which is likely to affect prejudicially his functions as such Chairperson or Member or Secretary.

(5)

No appointment of the Chairperson or Member or Secretary of the Commission or the President or Member of the Autonomous Board, as the case may be, shall be invalid merely by reason of any vacancy or absence of a Member in the Search-cum-Selection Committee.

(6)

Subject to the provisions of sub-sections (2) to (5), the Search-cum-Selection Committee may regulate its own procedure.

6.

Term of office and conditions of service of Chairperson and Members

Term of office and conditions of service of Chairperson and Members any valid reason in the opinion of the Commission, such Member shall be deemed to have vacated the seat.

(1)

The Chairperson appointed under sub-section (2) of section 4, and Member of the Commission appointed or nominated under clauses (a) and (d) of sub-section (4) of section 4 shall not be eligible for any extension of term beyond four years or for reappointment and such person shall cease to hold office after attaining the age of seventy years.

(2)

The term of office of an ex officio Member shall continue as long as he holds the office by virtue of which he is such Member.

(3)

Where a Member, other than an ex officio Member, is absent from three consecutive ordinary meetings of the Commission and the cause of such absence is not attributable to Search-cum- Selection Committee for appointment of Chairperson and Members.

(4)

The salaries and allowances payable to, and other terms and conditions of service of, the Chairperson and Members appointed or nominated under clauses (a) and (d) of sub-section (4) of section 4, other than an ex officio Member, shall be such as may be prescribed.

(5)

The Chairperson or a Member or Secretary of the Commission may,?

(a)

relinquish his office by giving in writing to the Central Government a notice of not less than three months; or

(b)

be removed from his office in accordance with the provisions of section 7:

Provided that such person may be relieved from duties earlier than three months or be allowed to continue beyond three months until a successor is appointed, if the Central Government so decides.

(6)

The Chairperson and every Member of the Commission shall make declaration of his assets and liabilities at the time of entering upon his office and at the time of demitting his office and also declare his professional and commercial engagement or involvement in such form and manner as may be prescribed, and such declaration shall be published on the website of the Commission.

(7)

The Chairperson or a Member appointed or nominated under clauses (a) and (d) of sub-section (4) of section 4 or the Secretary, ceasing to hold office as such, shall not accept, for a period of two years from the date of demitting such office, any employment, in any capacity, including as a consultant or an expert, in any private dental institution, whose matter has been dealt with by such person, directly or indirectly:

Provided that nothing herein shall be construed as preventing such person from accepting an employment in a body or institution, including dental institution, controlled or maintained by the Central Government or a State Government:

Provided further that nothing herein shall prevent the Central Government from permitting the Chairperson or Member or Secretary of the Commission to accept any employment in any capacity, including as a consultant or expert in any private dental institution whose matter has been dealt with by such Chairperson or Member or Secretary.

7.

Removal of Chairperson and Member of Commission

(1)

The Central Government may, by order, remove from office the Chairperson or any other Member, who?

- (a) has been adjudged an insolvent; or
- (b) has been convicted of an offence which, in the opinion of the Central Government, involves moral turpitude; or
- (c) has become physically or mentally incapable of acting as a Member; or
- (d) is of unsound mind and stands so declared by a competent court; or
- (e) has acquired such financial or other interest as is likely to affect prejudicially his functions as a Member; or
- (f) has so abused his position as to render his continuance in office prejudicial to public interest.

(2) No Member shall be removed under clauses (e) and (f) of sub-section (1) unless he has been given a reasonable opportunity of being heard in the matter.

8. Appointment of Secretary, experts, professionals, officers and other employees of Commission.

(1) There shall be a Secretariat for the Commission to be headed by a Secretary, to be appointed by the Central Government in accordance with the provisions of section 5.

(2) The Secretary of the Commission shall be a person of proven administrative capacity and integrity, possessing such qualifications and experience as may be prescribed.

(3) The Secretary shall be appointed by the Central Government for a term of four years and shall not be eligible for any extension or reappointment.

Removal of Chairperson and Member of Commission.

Appointment of Secretary, experts, professionals, officers and other employees of Commission.
SEC.

1] THE GAZETTE OF INDIA EXTRAORDINARY 7

(4) The Secretary shall also be the Member Secretary of each of the Autonomous Boards constituted under section 16.

(5) The Secretary shall discharge such functions of the Commission, and of each of the Autonomous Boards constituted under section 16, as may be specified by regulations.

(6) The Commission may, for the efficient discharge of its functions under this Act, appoint such officers and other employees of the Commission, other than Secretary, as it considers necessary, against the posts created by the Central Government on the recommendation of the Commission.

(7) The salaries and allowances payable to, and other terms and conditions of service of the Secretary, officers and other employees of the Commission shall be such as may be prescribed.

(8) The Commission may engage, in accordance with the procedure specified by regulations, such number of experts, consultants and professionals of integrity and outstanding ability, who have special knowledge and experience in such fields, including dental education, public health, management, health economics, quality assurance, patient advocacy, health research, science and technology, administration, finance, accounts and law, as it deems necessary, to assist the Commission in the discharge of its functions under this Act:

Provided that the Commission may, to facilitate global mobility and employability of registered professionals, invite such number of experts and domain specialists from a foreign country, as it deems necessary, who have special knowledge

of dental curriculum, practical training and pattern of examination including licentiate examination of that country, to the meetings of the Commission, in such manner as may be specified by regulations.

9.

Meetings, etc., of Commission.

(1)

The Commission shall meet at least once every quarter at such time and place as may be appointed by the Chairperson.

(2)

The Chairperson shall preside at the meeting of the Commission and if, for any reason, the Chairperson is unable to attend the meeting of the Commission, any other Member, being the President of an Autonomous Board, nominated by the Chairperson, shall preside at the meeting.

(3)

Unless the procedure to be followed at the meetings of the Commission is otherwise provided by regulations, one-half of the total number of Members of the Commission including the Chairperson shall constitute the quorum and all the acts of the Commission shall be decided by a majority of the members present and voting and in the event of equality of votes, the Chairperson, or in his absence, the President of the Autonomous Board nominated under sub-section (2), shall have the casting vote.

(4)

The general superintendence, direction and control of the administration of the Commission shall vest in the Chairperson.

(5)

No act done by the Commission shall be questioned on the ground of the existence of a vacancy in, or a defect in the constitution of, the Commission.

10.

Powers and functions of Commission

(1)

The Commission shall, for ensuring coordinated and integrated development of education and maintenance of the standards of delivery of services, take all such steps, as it may think fit, and revise the same periodically, as may be specified by regulations.

(2)

The Commission shall perform the following functions, namely:?

(a)

lay down policies and regulate standards for the governance of dental education, examination and training and make necessary regulations in this behalf;

(b)

promote adoption of additional degrees or diplomas, higher qualifications, including certification courses and development of soft skills for advancement of career of the dentists and dental auxiliaries;

(c)

regulate dental institutions, dental researches, dentists and dental auxiliaries and make necessary regulations in this behalf;

(d)

ensure that all admissions to undergraduate dental course, namely, Bachelor of Dental Surgery in all dental institutions which are governed by the provisions of this Act or any other law for the time being in force, shall be through National Eligibility-cum-Entrance Test conducted under section 14 of the National Medical Commission Act, 2019;

(e)

to identify and regulate any other category of dental auxiliaries;

(f)

to collaborate with industry and institutions for use of cutting-edge technology and hybrid education to drive innovation and research in the field of dental education and examinations and make necessary regulations in this behalf;

(g)

assess the requirements in dental healthcare, including human resources for dental health, career progression of

dentists and dental auxiliaries and healthcare infrastructure and develop a road map for meeting such requirements;

(h)

promote, coordinate and frame guidelines and lay down policies by making necessary regulations for the proper functioning of the Commission, the Autonomous Boards, the Dental Advisory Council, the State Dental Councils and the Joint Dental Councils;

(i)

ensure coordination among the Autonomous Boards;

(j)

take such measures, as may be necessary, to ensure compliance by the State Dental Councils of the guidelines framed and regulations made under this Act for their effective functioning under this Act;

(k)

exercise appellate jurisdiction with respect to the decisions of the Autonomous Boards;

(l)

promote preventive dental care services;

(m)

lay down policies and codes to ensure observance of professional ethics in dental profession and to promote ethical conduct during the provision of care by dentists;

(n)

frame guidelines for determination of fees and all other charges in respect of fifty per cent. of seats in private dental institutions and deemed to be Universities which are governed under the provisions of this Act;

(o)

take measures to enhance skills and competency of registered professionals for facilitating global mobility;

(p)

exercise such other powers and perform such other functions as may be prescribed.

(3)

The Commission may delegate such of its functions (except the power to make regulations) to the Autonomous Boards as it may deem necessary.

(4)

The Commission may give such directions, as may deem necessary, to a State Council for carrying out all or any of the provisions of this Act and the State Council shall comply with such directions.

(5) All orders and decisions of the Commission shall be authenticated by the signature of the Secretary.

(6)

The Commission may delegate such of its powers of administrative and financial matters, as it deems fit, to the Secretary.

(7)

The Commission may constitute sub-committees and delegate such of its powers to such sub-committees as may be necessary to enable them to accomplish specific tasks.

Chapter III

DENTAL ADVISORY COUNCIL

11.

Constitution and composition of Dental Advisory Council.

(1)

The Central Government shall constitute an advisory body to be known as the Dental Advisory Council.

(2)

The Council shall consist of a Chairperson and the following members, namely:—

(a)

the Chairperson of the Commission shall be the ex officio Chairperson of the Council;

(b)

every ex officio member of the Commission appointed under sub-section (3) of section 4, and the part-time members appointed under clauses (a) and (d) of sub-section (4) of that section, shall be the ex officio members of the Council;

(c)

one member to represent each State, who is the Dean or Principal of a Government Dental College in that State, to be nominated by that State Government:

Provided that the term of office of the member shall continue as long as he holds the post by virtue of which he has been nominated, subject to a maximum of four years;

(d)

one member to represent each Union territory, who is the Dean or Principal of a Government Dental College in that Union territory, to be nominated by the Ministry of Home Affairs in the Government of India:

Provided that the term of office of the member shall continue as long as he holds the post by virtue of which he has been nominated, subject to a maximum of four years:

Provided further that if there is no Government Dental College in any State or Union territory, the State Government or in case of a Union territory, the Ministry of Home Affairs shall nominate a member possessing such dental qualifications and experience, as may be prescribed;

(e)

one member to represent each State and each Union territory from amongst the members of the State Dental Council, to be nominated by that State Dental Council for a term of four years and shall not be eligible for any extension or reappointment:

Provided that if such member ceases to be a member of the State Dental Council before the completion of his four year term, then, he shall cease to be a member of the Dental Advisory Council as well, and in such an eventuality, the State Dental Council shall nominate another member to represent that State or Union territory, as the case may be, for the remaining term of office of the member in whose place he is so nominated;

(f)

the Chairman, University Grants Commission;

(g)

the Director, National Assessment and Accreditation Council;

(h)

three members to be nominated by the Central Government from amongst persons holding the post of Director in the institutions of national importance or Vice-Chancellor in the Universities;

(i)

Director General of Indian Council for Medical Research or his nominee not below the rank of Scientist 'H';

(j)

Director General Dental Services, Army Dental Corps or nominee

12.

Functions of Dental Advisory Council

(1)

The Council shall be the primary platform through which the States and Union territories may put forth their views and concerns before the Commission and help in shaping the overall agenda, policy and action relating to dental education and training.

(2)

The Council shall advise the Commission on measures to determine and maintain, and to coordinate maintenance of, the minimum standards in all matters relating to dental education, training and research.

(3)

The Council shall advise the Commission on measures to enhance equitable access to dental education and uniform system of examination.

13.

Meetings of Dental Advisory Council

(1)

The Council shall meet at least once a year at such time and place as may be decided by the Chairperson.

(2)

The Chairperson shall preside at the meeting of the Council and if for any reason the Chairperson is unable to attend a meeting of the Council, such other member as nominated by the Chairperson shall preside over the meeting.

(3)

Unless the procedure is otherwise provided by regulations, fifty per cent. of the members of the Council including the Chairperson shall form the quorum and all acts of the Council shall be decided by a majority of the members present and voting.

Chapter IV- NATIONAL EXAMINATION

14.

National Eligibility-cum-Entrance Test.

(1)

All admissions to the undergraduate course of Bachelor of Dental Surgery in all dental institutions which are governed by the provisions of this Act or any other law for the time being in force shall be through National Eligibility-cum-Entrance Test conducted under section 14 of the National Medical Commission Act, 2019.

(2)

Till such time as the National Exit Test (Dental) becomes operational under section 15, all admissions to the postgraduate courses of Master of Dental Surgery in all dental institutions which are governed by the provisions of this Act or any other law for the time being in force shall be through National Eligibility-cum-Entrance Test (MDS) to be conducted by the designated authority appointed by the Central Government.

(3)

The Commission shall specify by regulations the manner of conducting common counselling by the designated authority for admission to undergraduate and postgraduate seats in all the dental institutions which are governed by the provisions of this Act:

Provided that the designated authority appointed or nominated by the Central Government shall conduct the common counselling for all India seats and the designated authority of the State Government shall conduct the common counselling for the seats at the State level.

Chapter V

NATIONAL EXIT TEST (DENTAL)

15.

National Exit Test (Dental).

(1)

A common final year undergraduate dental examination, to be known as the 'National Exit Test (Dental)' shall be held for granting licence to practice dentistry as dentists and for enrolment in the State Register or the National Register, as the case may be.

(2)

The Commission shall conduct the National Exit Test (Dental) through such designated authority and in such manner as may be specified by regulations.

(3)

The National Exit Test (Dental) shall become operational on such date, within three years from the date of commencement of this Act, as may be appointed by the Central Government, by notification.

(4)

Any person with a foreign dental qualification shall have to qualify National Exit Test (Dental) for the purpose of obtaining licence to practice dentistry as dentist and for enrolment in the State Register or the National Register, as the case may be, in such manner as may be specified by regulations.

(5)

The National Exit Test (Dental) shall be the basis for admission to the postgraduate dental education in dental institutions which are governed under the provisions of this Act Meetings of Dental Advisory Council.

National Eligibility-cum- Entrance Test.

(6)

The Commission shall specify by regulations the manner of conducting common counselling by the designated authority for admission to the postgraduate seats in the dental institutions referred to in sub-section (5).

(7)

The designated authority of the Central Government shall conduct the common counselling for All India seats and the designated authority of the State Government shall conduct the common counselling for the seats at the State level.

Chapter VI

AUTONOMOUS BOARDS

16.

Constitution of Autonomous Boards.

(1)

The Central Government shall, by notification, constitute the following Autonomous Boards, under the overall supervision of the Commission, to perform the functions assigned to such Boards under this Act, namely:?

(a)

the Under-Graduate and Post-Graduate Dental Education Board;

(b)

the Dental Assessment and Rating Board; and

(c)

the Ethics and Dental Registration Board.

(2)

Every Autonomous Board shall carry out its functions under this Act in such manner as may be specified by regulations.

17.

Composition of Autonomous Boards.

(1)

Every Autonomous Board shall consist of a President, not more than two whole-time Members and not more than two part-time Members.

(2)

The President of each Autonomous Board, two whole-time Members and one part-time Member of the Under-Graduate and Post-Graduate Dental Education Board, and one whole-time Member and one part-time Member of the Dental Assessment and Rating Board and of the Ethics and Dental Registration Board, shall be persons of outstanding ability, proven administrative capacity and integrity, possessing a postgraduate degree in any discipline of dentistry from any University and having hands-on clinical experience of not less than fifteen years, out of which at least seven years shall be as a leader in the area of dental education.

(3)

The second whole-time Member of the Dental Assessment and Rating Board shall be a person of outstanding ability and integrity, possessing a postgraduate degree in any of the disciplines of management, quality assurance, law or science and technology from any University, having experience of not less than fifteen years in such field, out of which at least seven years shall be as a leader.

(4)

The second whole-time Member of the Ethics and Dental Registration Board shall be a person of outstanding ability who has demonstrated public record of work on dental or medical ethics or a person of outstanding ability possessing a postgraduate degree in any of the disciplines of quality assurance, public health, law or patient advocacy from any University and having experience of not less than fifteen years in such field, out of which at least seven years shall be as a leader.

(5)

The second part-time Member of the Under-Graduate and Post-Graduate Dental Education Board, the Dental Assessment and Rating Board and the Ethics and Dental Registration Board shall be chosen from amongst the Members appointed under clause (c) of sub-section (4) of section 4 in such manner as may be prescribed.

18.

Search-cum-Selection Committee for appointment of President and Members

The Central Government shall appoint the President and Members of the Autonomous Boards, except Members referred to in sub-section (5) of section 17, on the recommendations made by the Search-cum-Selection Committee constituted under section 5 in accordance with the procedure specified in that section.

19.

Term of office and conditions of service of President and Members.

(1)

The President and Members (other than part-time Members) of each Autonomous Board shall hold the office for a term not exceeding four years and shall not be eligible for any extension or reappointment:

Provided that part-time Members of each Autonomous Board shall hold the office for a term of two years:

Provided further that the President or a Member shall cease to hold office after attaining the age of seventy years.

(2)

The salaries and allowances payable to, and other terms and conditions of service of the President and Members (other than part-time Members) of an Autonomous Board shall be such as may be prescribed:

Provided that part-time Members of each Autonomous Board shall be entitled for such allowances as may be prescribed.

(3)

The provisions of sub-sections (3), (5), (6) and (7) of section 6 relating to other terms and conditions of service of, and section 7 relating to removal from the office of, the Chairperson and Members of the Commission shall also be applicable to the President and Members of the Autonomous Boards.

20.

- Advisory committees of experts.

(1)

Each Autonomous Board, except the Ethics and Dental Registration Board, shall be assisted by such advisory committees of experts as may be constituted by the Commission for the efficient discharge of the functions of such Boards under this Act:

Provided that the advisory committee for the Under-Graduate and Post-Graduate Dental Education Board shall also have at least one member from amongst personnel of each category of the dental auxiliaries to be nominated by the Chairperson of the Commission, in such manner as may be specified by regulations.

(2)

The Ethics and Dental Registration Board shall be assisted by such ethics committees of experts as may be constituted by the Commission for the efficient discharge of the functions of that Board under this Act.

21.

Staff of Autonomous Boards.

The experts, consultants, professionals, officers and other employees appointed under section 8 shall be made available to the Autonomous Boards in such number, and in such manner, as may be specified by regulations by the Commission:

Provided that the experts and domain specialists from foreign countries invited by the Commission under sub-section (8) of section 8 shall also be made available to the Autonomous Boards in such number and manner, as may be specified by regulations.

22.

Meetings, etc., of Autonomous Boards.

(1)

Every Autonomous Board shall meet at least once every month, or earlier, as the case may be, at such time and place as it may appoint.

(2) All decisions of the Autonomous Boards shall be made by majority of votes of the President and Members.

(3)

Subject to the provisions of section 28, a person who is aggrieved by any decision of an Autonomous Board may prefer an appeal to the Commission against such decision within thirty days of the communication of such decision; and the Commission shall, after giving an opportunity of being heard, dispose of the appeal within a period of sixty days from the date of such appeal:

Provided that the President of the concerned Board shall not attend proceedings of the hearing of the appeal made against the decision of his Board.

23.

- Powers of Autonomous Boards and delegation of powers.

(1)

The President of each Autonomous Board shall have such administrative and financial powers as may be delegated to it by the Commission to enable such Board to function efficiently.

(2)

The President of an Autonomous Board may further delegate any of his powers to a Member or an officer of that Board, and such person shall exercise his powers subject to the general control, supervision and direction of the President.

24.

Powers and functions of Under-Graduate and Post-Graduate Dental Education Board.

(1)

The Under-Graduate and Post-Graduate Dental Education Board shall perform the following functions, namely: ?

(a)

determine minimum requirements and standards of dental education at undergraduate level and postgraduate level for dentists and dental auxiliaries in accordance with the regulations made under this Act, and oversee all aspects relating thereto;

(b)

develop competency based dynamic curriculum at undergraduate level and postgraduate level for dentists and dental auxiliaries for addressing the needs of basic dental care services, including public dentistry and community dental care, in accordance with the provisions of regulations made under this Act with a view to develop appropriate skill, knowledge, attitude, values and ethics to provide dental care, impart dental education and conduct dental research;

(c)

frame guidelines for setting up of dental institutions for imparting undergraduate courses and postgraduate courses for dentists and dental auxiliaries, having regard to the needs of the country and the global norms, in accordance with the regulations made under this Act;

(d)

determine the minimum requirements and standards for conducting courses and examinations at undergraduate level and postgraduate level for dentists and dental auxiliaries in dental institutions, having regard to the needs of creativity at local levels, including designing of some courses by individual institutions, in accordance with provisions of the regulations made under this Act;

(e)

determine standards and norms for infrastructure, faculty and quality of education in dental institutions providing undergraduate and postgraduate dental education for dentists and dental auxiliaries in accordance with provisions of the regulations made under this Act;

(f)

facilitate development and training of faculty members teaching undergraduate courses for dentists and dental auxiliaries;

(g)

facilitate research and the international student and faculty exchange programme relating to undergraduate and postgraduate dental education;

(h)

specify norms for compulsory annual disclosures, electronically or otherwise, by dental institutions, in respect of their functions which have a bearing on the interest of all stakeholders, including students, faculty, State Dental Councils, Joint Dental Council, the Commission and the Central Government;

(i)

grant recognition to a dental qualification at the undergraduate level and postgraduate level for dentists and dental auxiliaries.

(2)

The Under-Graduate and Post-Graduate Dental Education Board shall, in the discharge of its duties, make such recommendations to, and seek such directions from, the Commission, as it deems necessary.

25.

Powers and functions of Dental Assessment and Rating Board

(1)

The Dental Assessment and Rating Board shall perform the following functions, namely:?

(a)

determine the procedure for assessing and rating the dental institutions for their compliance with the standards laid down by the Under-Graduate and Post-Graduate Dental Education Board in accordance with the regulations made under this Act;

(b)

grant permission for establishment of a new dental institution, or to start any postgraduate course or to increase number of seats, in accordance with the provisions of section 28;

Powers and functions of Under- Graduate and Post-Graduate Dental Education Board.

(c)

conduct inspections of dental institutions using Information Technology based tools or otherwise for assessing and rating such institutions in accordance with the regulations made under this Act:

Provided that the Dental Assessment and Rating Board may, if it deems necessary, hire and authorise any other third party agency or accreditation body or persons for carrying out inspections of dental institutions for assessing and rating such institutions:

Provided further that where inspection of dental institutions is carried out by such third party agency or accreditation body or persons authorised by the Dental Assessment and Rating Board, it shall be obligatory on such institutions to provide access to such agency or person;

(d)

conduct, or where it deems necessary, empanel independent rating agencies to conduct, inspection to assess and rate all dental institutions, within such period of their opening, and every year thereafter, at such time, and in such manner, as may be specified by regulations:

Provided that the Dental Assessment and Rating Board may conduct evaluation and assessment of any dental institution at any time, either directly or through any other expert having integrity and experience of dental profession and without any prior notice and assess and evaluate the performance, standards and benchmarks of such dental institution;

(e)

make available on its website or in public domain the assessment and ratings of dental institutions at regular intervals in accordance with the regulations made under this Act;

(f)

take such measures, including issuing warning, imposition of monetary penalty, reducing intake or stoppage of admissions and recommending to the Commission for withdrawal of recognition, against a dental institution for failure to maintain the minimum essential standards specified by the Under-Graduate and Post-Graduate Dental Education Board, in accordance with the regulations made under this Act:

Provided that the monetary penalty so imposed shall not be less than one-tenth, and not more than five times, of the total amount charged, by whatever name called, by such institution for one full batch of students of undergraduate course or postgraduate course, as the case may be:

Provided further that the Dental Assessment and Rating Board shall consult the Under-Graduate and Post-Graduate Dental Education Board before recommending to the Commission for withdrawal of recognition of a dental institution that fails to maintain the minimum essential standards specified by the Under-Graduate and Post-Graduate Dental Education Board.

(2)

The Dental Assessment and Rating Board shall, in the discharge of its functions, make such recommendations to, and seek such directions from, the Commission, as it deems necessary.

26.

Powers and functions of Ethics and Dental Registration Board

(1)

The Ethics and Dental Registration Board shall perform the following functions, namely:?

(a)

maintain an online and live National Registers of all licensed dentists and dental auxiliaries in accordance with the provisions of section 30;

(b)

regulate the standards, scope of practice, professional conduct and promote dental ethics in accordance with the regulations made under this Act:

Provided that the Ethics and Dental Registration Board shall ensure compliance of the code of professional and ethical conduct through the State Dental Council in a case where such State Dental Council has been conferred power to take disciplinary actions in respect of professional or ethical misconduct by dentists under respective State Acts;

(c)

approve or reject the application for registration or suspend or cancel registration or licence granted to dentists and dental auxiliaries on grounds of professional and ethical misconduct;

(d)

develop mechanisms to have continuous interaction with State Dental Councils to effectively promote and regulate the conduct of dentists and professionals;

(e)

exercise appellate jurisdiction under sub-section (5) of section 29 with respect to the actions taken by a State Dental Council.

(2)

The Ethics and Dental Registration Board shall, in the discharge of its duties, make such recommendations to, and seek such directions from, the Commission, as it deems necessary.

27.

Permission for establishment of new dental college or to start postgraduate course or to increase number of seats.

(1)

No person shall establish a new dental college or start any postgraduate course or increase number of seats without obtaining prior permission of the Dental Assessment and Rating Board:

Provided that the Dental Assessment and Rating Board shall consult the Under-Graduate and Post-Graduate Dental Education Board before approving or disapproving such permission.

(2)

For the purposes of obtaining permission under sub-section (1), a person may submit a scheme to the Dental Assessment and Rating Board in such form, containing such particulars, accompanied by such fee, and in such manner, as may be specified by regulations.

(3)

The Dental Assessment and Rating Board shall, having due regard to the criteria specified in section 28, consider the scheme received under sub-section (2) and either approve or disapprove such scheme within a period of six months from the date of such receipt:

Provided that the Dental Assessment and Rating Board shall consult the Under-Graduate and Post-Graduate Dental Education Board before approving such scheme:

Provided further that before disapproving the scheme, an opportunity to rectify the defects, if any, shall be given to the person concerned.

(4)

Where a scheme is approved under sub-section (3), such approval shall be the permission under sub-section (1) to establish new dental college or to start any postgraduate course or to increase number of seats, as the case may be.

(5)

Where a scheme is disapproved under sub-section (3), or where no decision is taken within six months of submitting a scheme under sub-section (1), the person concerned may prefer an appeal to the Commission for approval of the scheme within fifteen days of such disapproval or, as the case may be, lapse of six months, in such manner as may be specified by regulations.

(6)

The Commission shall decide the appeal received under sub-section (5) within a period of sixty days from the date of receipt of the appeal and in case the Commission approves the scheme, such approval shall be the permission under sub-section (1) to establish a new dental college or to start any postgraduate course or to increase number of seats, as the case may be, and in case the Commission disapproves the Scheme, or fails to give its decision within the specified period, the person concerned may prefer a second appeal to the Central Government within thirty days of communication of such disapproval or, as the case may be, lapse of specified period.

(7)

The Dental Assessment and Rating Board may conduct evaluation and assessment of any dental institution at any time, either directly or through any other expert having integrity and experience in dental profession, without any prior notice and assess and evaluate the performance, standards and benchmarks of such dental institution.

Explanation.—For the purposes of this section, the term "person" includes a University, trust or any other association of

persons or body of individuals, but does not include the Central Government.

28.

Criteria for approving or disapproving scheme.

While approving or disapproving a scheme under section 27, the Dental Assessment and Rating Board, or the Commission, as the case may be, shall take into consideration the following criteria, namely:?

(a)

adequacy of financial resources;

(b)

whether adequate academic faculty and other necessary facilities have been provided to ensure proper functioning of dental college or undertaken to be provided within the time-limit specified in the scheme;

(c)

whether adequate hospital facilities have been provided or undertaken to be provided within the time-limit specified in the scheme;

(d)

such other factors as may be specified by regulations.

Chapter VII

STATE DENTAL COUNCIL OR JOINT DENTAL COUNCIL

29.

State Dental Council or Joint Dental Council.

(1)

The State Government shall, within one year of the commencement of this Act, take necessary steps to establish a State Dental Council having the following composition, namely:?

(a)

a dentist of outstanding ability, proven administrative capacity and integrity and possessing a postgraduate degree in any discipline of dentistry from any University or institute of national importance with experience of not less than twenty years in the field of dentistry, out of which at least ten years shall be as a leader, to be appointed by the State Government?Chairperson;

(b)

one representative of the department of medical education or health services in the State Government not below the rank of Additional Director?

Member, ex officio;

(c)

four persons to be elected by dentists registered in the State Register from among themselves, in such manner as may be prescribed by the State Government?

Members;

(d)

two persons, having experience of not less than ten years in any field of dentistry from any Government Dental College in that State, to be nominated by the State Government?Members:

Provided that if the State does not have a Government Dental College, the State Government may nominate one of the senior-most dentist with minimum of ten years'

service in any Government hospital or in the dental department of a Government Medical College;

(e)

two persons having experience of not less than ten years in any field of dentistry from any recognised private dental college in the State, to be nominated by the State Government?Members:

Provided that if the State does not have a private dental college, the State Government may nominate one of the senior-most dentist with minimum of ten years'

service in any private hospital or in the dental department of a private medical college;

(f)

two persons of eminence having experience of not less than ten years in any field of dentistry, to be nominated by the State Government?Members.

(2)

The State Dental Council shall be a body corporate by the name aforesaid, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable and immovable, and to contract and shall by the same name sue or be sued.

(3)

The Chairperson of the State Dental Council and Members elected or nominated under clauses (c), (d), (e) and (f) of sub-section (1) shall hold office for a term not exceeding four years from the date on which they enter upon their office and shall not be eligible for extension or reappointment:

Provided that such person shall cease to hold office after attaining the age of seventy years.

(4) Where a State Act confers power upon the State Dental Council to take disciplinary actions in respect of any professional or ethical misconduct by a registered dentist or professional, the State Dental Council shall act in accordance with the regulations made, and the guidelines framed, under this Act:

Provided that till such time as a State Dental Council is established in a State, the Ethics and Dental Registration Board shall receive the complaints and grievances relating to any professional or ethical misconduct against a registered dentist or professional in that State in accordance with such procedure as may be specified by regulations:

Provided further that the Ethics and Dental Registration Board or the State Dental Council, as the case may be, shall give an opportunity of being heard to the dentist or professional concerned before taking any action, including imposition of any monetary penalty against such person.

(5)

A registered professional or any other person who is aggrieved by any action taken by a State Dental Council under sub-section (4) may prefer an appeal to the Ethics and Dental Registration Board within sixty days against such action, and the Ethics and Dental Registration Board shall decide on the appeal within a period of sixty days and the decision, if any, of the Ethics and Dental Registration Board thereupon shall be binding on the State Dental Council, unless a second appeal is preferred under sub-section (6).

(6)

A registered professional or any other person who is aggrieved by the decision of the Ethics and Dental Registration Board may prefer an appeal to the Commission within sixty days of communication of such decision and the Commission shall dispose of such appeal within a period of ninety days from the date of that appeal.

(7)

Notwithstanding anything to the contrary contained in this section, two or more States Governments may enter into an agreement to constitute a Joint Dental Council with representation of the participating States, not exceeding the composition specified in sub-section (1), to be in force for such period and subject to renewal for such further period, as may be specified in the agreement.

Explanation.—For the purposes of this Act,?

(a)

"State" includes Union territory and the expressions "State Government"

and "State Dental Council", in relation to a Union territory, shall respectively mean the "Central Government" and "Union Territory Dental Council";

(b)

the expression "professional or ethical misconduct" includes any act of commission or omission as may be specified by regulations.

Chapter VIII

NATIONAL REGISTER AND STATE REGISTER

30.

National Register and State Register

(1)

The Ethics and Dental Registration Board shall maintain an online and live National Register for Dentists containing the name, address, all recognised qualifications possessed by a licensed dentist and such other particulars as may be specified by regulations.

(2)

The Ethics and Dental Registration Board shall also maintain a separate online and live National Register for each category of dental auxiliaries, containing the name, address, recognised qualifications possessed by the dental

auxiliaries and such other particulars as may be specified by regulations.

(3)

The National Register referred to in sub-sections (1) and (2) shall be maintained in such form, including in electronic or digital form and in such manner as may be specified by regulations.

(4)

The manner in which a name or qualification may be added to, or removed from, the National Register and the grounds for removal thereof, shall be such as may be specified by regulations.

(5)

The National Register shall be a public document within the meaning of section 74 of the Indian Evidence Act, 1872.

(6)

The National Register shall be made available to the public in form of a digital portal accessible on the website of the Ethics and Dental Registration Board in such manner and form as may be specified by regulations.

(7)

Every State Dental Council shall maintain and regularly update the State Register for Dentists and the State Register for dental auxiliaries in the specified electronic format and supply a physical copy of the same to the Ethics and Dental Registration Board within three months of the commencement of this Act.

(8)

The Ethics and Dental Registration Board shall ensure electronic synchronisation of the National Register and the State Registers in such manner that any change in one register is automatically reflected in the other register.

31.

Rights of persons to have licence to practice and to be enrolled in National Register or State Register and their obligations thereto.

(1) Any person who qualifies the National Exit Test (Dental) held under section 15 shall be granted a licence to practice dentistry and shall have his name and qualifications enrolled in the National Register or a State Register, as the case may be:

Provided that a person who has been registered in the Indian Dental Register maintained under the Dentists Act, 1948 prior to the coming into force of this Act and before the National Exit Test (Dental) becomes operational under sub-section (3) of section 15, shall be deemed to have been registered under this Act and be enrolled in the National Register maintained under this Act.

(2)

No person who has obtained dental qualification from a dental institution established in any country outside India and is recognised as a dentist in that country, shall, after the commencement of this Act and the National Exit Test (Dental) becomes operational under sub-section (3) of section 15, be enrolled in the National Register unless he qualifies the National Exit Test (Dental).

(3)

When a person whose name is entered in the State Register or the National Register, as the case may be, obtains any title, diploma or other qualification for proficiency in sciences or public health or dentistry which is a recognised dental qualification under section 33 or section 34 or section 35, as the case may be, he shall be entitled to have such title, diploma or qualification entered against his name in the State Register or the National Register, as the case may be, in such manner as may be specified by regulations.

32.

Bar to Practice

(1)

No person other than a person who is enrolled in the State Register or the National Register, as the case may be, shall?

(a)

be allowed to practice dentistry as a qualified dentist;

(b)

hold office as a dentist or any other office, by whatever name called, which is meant to be held by a dentist;

(c)

be entitled to sign or authenticate a medical or fitness certificate or any other certificate relating to dentistry, required by any law to be signed or authenticated by a duly qualified dentist;

(d)

be entitled to give evidence at any inquest or in any court of law as an expert under section 45 of the Indian Evidence Act, 1872 on any matter relating to dentistry:

Provided that a foreign citizen who is enrolled in his country as a dentist in accordance with the law regulating the registration of dentists in that country may be permitted temporary registration in India for such period and in such manner as may be specified by regulations.

(2) Any person who contravenes any of the provisions of this section shall be punished with imprisonment for a term which may extend to one year, or with fine which may extend to five lakh rupees or with both.

Chapter IX

RECOGNITION OF DENTAL QUALIFICATIONS

33.

Recognition of dental qualifications granted by Universities or dental institutions in India.

(1)

The dental qualification granted by any University or dental institution in India shall be listed and maintained by the Under-Graduate and Post-Graduate Dental Education Board in such manner as may be specified by regulations and such dental qualification shall be a recognised dental qualification for the purposes of this Act.

(2)

Any University or dental institution in India which grants an undergraduate or postgraduate dental qualification not included in the list maintained by the Under-Graduate and Post-Graduate Dental Education Board shall apply to that Board for granting recognition to such qualification.

(3)

The Under-Graduate and Post-Graduate Dental Education Board shall examine the application for grant of recognition to a dental qualification within a period of six months in such manner as may be specified by regulations.

(4)

Where the Under-Graduate and Post-Graduate Dental Education Board decides to grant recognition to a dental qualification, it shall include such dental qualification in the list maintained by it and also specify the date of effect of such recognition.

(5)

Where the Under-Graduate and Post-Graduate Dental Education Board decides not to grant recognition to a dental qualification, the University or the dental institution concerned may prefer an appeal to the Commission for grant of recognition within sixty days of the communication of such decision, in such manner as may be specified by regulations.

(6)

The Commission shall examine the appeal received under sub-section (5) within sixty days from the date of filing of appeal and after giving an opportunity of being heard, pass such orders, as it thinks fit.

(7)

Where the Commission decides not to grant recognition to the dental qualification or fails to take a decision within the specified period, the University or the dental institution concerned may prefer a second appeal to the Central Government within thirty days of the communication of such decision or lapse of the specified period, as the case may be.

(8)

All dental qualifications which have been recognised before the date of commencement of this Act and are included in Part I and Part II of the Schedule to the Dentists Act, 1948, shall also be recognised dental qualifications for the purposes of this Act, and shall be listed and maintained by the Under-Graduate and Post-Graduate Dental Education Board in such manner as may be specified by regulations.

34.

Recognition of dental qualifications granted by dental institutions outside India.

(1)

Any primary dental qualification or higher dental qualification which is recognised for enrolment as a dentist in a foreign country shall, in respect of a person who qualifies the National Exit Test (Dental) for primary dental qualification, or the Screening Test for higher dental qualification, be deemed to be a recognised dental qualification for the purposes of this Act.

(2)

The Commission shall, for the purposes of sub-section (1), conduct Screening Test for higher dental qualification through such designated authority, and in such manner, as may be specified by regulations.

(3)

All dental qualifications which have been recognised before the date of commencement of this Act and are included in Part III of the Schedule to the Dentists Act, 1948, shall also be recognised dental qualifications for the purposes of this Act, and shall be listed and maintained by the Commission in such manner as may be specified by regulations.

35.

Recognition of dental qualifications granted by statutory or other body in India.

(1)

The dental qualifications granted by any statutory or other dental body in India which are covered by the categories listed in the Schedule shall be recognised dental qualifications for the purposes of this Act.

(2)

The Central Government may, on the recommendation of the Commission, and having regard to the objects of this Act, by notification, add to, or, as the case may be, omit from, the Schedule any categories of dental qualifications granted by a statutory or other body in India and on such addition, or as the case may be, omission, the dental qualifications granted by such statutory or other body in India shall be, or shall cease to be, recognised dental qualifications for the purposes of this Act.

36.

Withdrawal of recognition granted to dental qualification granted by dental institutions in India.

(1)

Where, upon receiving the recommendation from the Dental Assessment and Rating Board under section 25, or otherwise, if the Commission is of the opinion that?

(a)

the courses of study and examination to be undergone in, or the proficiency required from candidates at any examination held by, a University or dental institution do not conform to the standards specified by the Under-Graduate and Post-Graduate Dental Education Board; or

(b)

the standards and norms for infrastructure, faculty and quality of education in dental institution as determined by the Under-Graduate and Post-Graduate Dental Education Board are not adhered to by any University or dental institution, and such University or dental institution has failed to take necessary corrective action to maintain specified minimum standards, the Commission may initiate action in accordance with the provisions of sub-section (2):

Provided that the Commission shall, before taking any action for suo motu withdrawal of recognition granted to the dental qualification awarded by a University or dental institution, impose penalty in accordance with the provisions of clause (f) of sub-section (1) of section 25.

(2)

The Commission shall, after making such further inquiry as it deems fit, and after holding consultations with the concerned State Government and the authority of the concerned University or dental institution, comes to the conclusion that the recognition granted to a dental qualification ought to be withdrawn, it may, by order, withdraw recognition granted to such dental qualification and direct the Under-Graduate and Post-Graduate Dental Education Board to amend the entries against the University or dental institution concerned in the list maintained by that Board to the effect that the recognition granted to such dental qualification is withdrawn with effect from the date specified in that order.

37.

De-recognition of dental qualifications granted by dental institutions outside India.

Where, after verification with the authority in any country outside India, the Commission is of the opinion that a recognised dental qualification granted by dental institutions outside India which is included in the list maintained by it is to be de-recognised, it may, by order, de-recognise such dental qualification and remove it from the list maintained by the Commission with effect from the date of such order.

Chapter X- GRANTS, ACCOUNTS AND AUDIT

38.

Grants by Central Government.

The Central Government may, after due appropriation made by Parliament by law in this behalf, make to the Commission grants of such sums of money as the Central Government may think fit.

39.

National Dental Commission Fund.

(1)

There shall be constituted a fund to be called "the National Dental Commission Fund" which shall form part of the public account of India and there shall be credited thereto?

(a)

all fees, penalties and charges received by the Commission and the Autonomous Boards;

(b)

all sums received by the Commission from such other sources as may be decided by it.

(2)

The Fund shall be applied for making payment towards?

(a)

the salaries and allowances payable to the Chairperson, Members appointed or nominated under clauses

(a)

and (d) of sub-section (4) of section 4 and the Secretary of the Commission, the Presidents and Members of the Autonomous Boards and the administrative expenses including the salaries and allowances payable to the officers and other employees of the Commission and Autonomous Boards;

(b)

the expenses incurred in carrying out the provisions of this Act, including in connection with the discharge of the functions of the Commission and the Autonomous Boards.

40.

- Audit and accounts.

(1)

The Commission shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form as may be prescribed, in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the Commission shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Commission to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any other persons appointed by him in connection with the audit of the accounts of the Commission shall have the same rights and privileges and authority in connection with such audit as the Comptroller and Auditor-General generally has in connection with the audit of Government accounts and in particular, shall have the right to demand the production of, and complete access to, records, books, accounts, connected vouchers and other documents and papers and to inspect the office of the Commission.

(4) The accounts of the Commission as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf, together with the audit report thereon, shall be forwarded annually by the Commission to the Central Government which shall cause the same to be laid, as soon as may be after it is received, before each House of Parliament.

41.

- Furnishing of returns and reports to Central Government.

(1)

The Commission shall furnish to the Central Government, at such time, in such form and in such manner, as may be prescribed or as the Central Government may direct, such reports and statements, containing such particulars in regard to any matter under the jurisdiction of the Commission, as the Central Government may, from time to time, require.

(2)

The Commission shall prepare, once every year, in such form and at such time as may be prescribed, an annual report, giving a summary of its activities during the previous year and copies of the report shall be forwarded to the Central Government.

(3)

A copy of the report received under sub-section (2) shall be laid by the Central Government, as soon as may be after it is received, before each House of Parliament.

Chapter XI

MISCELLANEOUS

42.

Power of Central Government to give directions to Commission and Autonomous Boards.

(1)

Without prejudice to the foregoing provisions of this Act, the Commission and the Autonomous Boards shall, in exercise of their powers and discharge of their functions under this Act, be bound by such directions on questions of policy as the Central Government may give in writing to them from time to time:

Provided that the Commission and the Autonomous Boards shall, as far as practicable, be given an opportunity to express their views before any direction is given under this sub-section.

(2)

The decision of the Central Government as to whether a question is one of policy or not shall be final.

43.

Power of Central Government to give directions to State Governments.

(1)

The Central Government may give such directions on questions of policy, as it may deem necessary, to a State Government for carrying out all or any of the provisions of this Act and the State Government shall comply with such directions.

(2)

The decision of the Central Government as to whether a question is one of policy or not shall be final.

44.

- Information to be furnished by Commission and publication thereof.

(1)

The Commission shall furnish such reports, copies of its minutes, abstracts of its accounts, and other information to the Central Government as that Government may require.

(2)

The Central Government may publish, in such manner as it may think fit, the reports, minutes, abstracts of accounts and other information furnished to it under sub-section (1).

45.

Obligation of Universities and dental institutions.

Every University and dental institution governed under this Act shall maintain a website at all times and display on its website all such information as may be required by the Commission or an Autonomous Board, as the case may be.

46.

Completion of courses of studies in dental institutions.

(1)

Notwithstanding anything contained in this Act, any student who was studying for a degree, diploma or certificate in any dental institution immediately before the commencement of this Act shall continue to so study and complete his course for such degree, diploma or certificate, and such institution shall continue to provide instructions and examination for such student in accordance with the syllabus and studies as existed before such commencement, and such student shall be deemed to have completed his course of study under this Act and shall be awarded degree, diploma or certificate under this Act.

(2)

Notwithstanding anything contained in this Act, where recognition granted to a dental institution has lapsed, whether by efflux of time or by its voluntary surrender or for any other reason whatsoever, such dental institution shall continue to maintain and provide the minimum standards required to be provided under this Act till such time as all candidates who are admitted in that dental institution complete their study.

47.

Joint sittings of Commission with relevant regulatory bodies.

The Commission shall, at least once a year, hold a meeting with the National Medical Commission, the Pharmacy Council of India, the Indian Nursing Council, National Commission for Indian System of Medicine, the National Commission for Homoeopathy and the National Commission for Allied and Healthcare Professions or the corresponding National Regulator for regulating the above professions, at such time and place as they mutually appoint, to enhance the interface between different workforce categories in modern system of medicine, develop consensus on issues and promote team based approach to healthcare delivery.

48.

State Government to promote preventive and promotive dental care in rural areas.

Every State Government may, for the purposes of addressing or promoting public dentistry and community dental care in rural areas, take necessary measures to enhance the capacity of the dental professionals.

49.

Chairperson, Members, officers of Commission and of Autonomous Boards to be public servants.

The Chairperson, Members, officers and other employees of the Commission and the President, Members and officers and other employees of the Autonomous Boards shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.

50.

Protection of action taken in good faith.

No suit, prosecution or other legal proceeding shall lie against the Government, the Commission or any Autonomous Board or a State Dental Council or any Committee thereof, or any officer or other employee of the Government or of the Commission acting under this Act for anything which is in good faith done or intended to be done under this Act or the rules or regulations made thereunder.

51.

Cognizance of offences.

No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made in this behalf by an officer authorised by the Commission or the Ethics and Dental Registration Board or a State Dental Council, as the case may be.

52.

Power of Central Government to supersede Commission.

(1)

If, at any time, the Central Government is of opinion that?

(a)

the Commission is unable to discharge the functions and duties imposed on it by or under the provisions of this Act; or

(b)

the Commission has persistently made default in complying with any direction issued by the Central Government under this Act or in the discharge of the functions and duties imposed on it by or under the provisions of this Act, the Central Government may, by notification, supersede the Commission for such period, not exceeding six months, as may be specified in the notification:

Provided that before issuing a notification under this sub-section, the Central Government shall give a reasonable opportunity to the Commission to show cause as to why it should not be superseded and shall consider the explanations and objections, if any, of the Commission.

(2)

Upon the publication of a notification under sub-section (1) superseding the Commission,?

(a)

all the Members shall, as from the date of supersession, vacate their offices as such;

(b)

all the powers, functions and duties which may, by or under the provisions of this Act, be exercised or discharged by or on behalf of the Commission, shall, until the Commission is re-constituted under sub-section (3), be exercised and discharged by such person or persons as the Central Government may direct;

(c)

all property owned or controlled by the Commission shall, until the Commission is re-constituted under sub-section (3), vest in the Central Government.

(3)

On the expiration of the period of supersession specified in the notification issued under sub-section (1), the Central Government may?

(a)

extend the period of supersession for such further term not exceeding six months, as it may consider necessary; or

(b)

re-constitute the Commission by fresh appointment and in such case the Members who vacated their offices under clause (a) of sub-section (2) shall not be deemed disqualified for appointment:

Provided that the Central Government may, at any time before the expiration of the period of supersession, whether as originally specified under sub-section (1) or as extended under this sub-section, take action under clause (b) of this sub-section.

(4)

The Central Government shall cause a notification issued under sub-section (1) and a full report of any action taken under this section and the circumstances leading to such action to be laid before both Houses of Parliament at the earliest.

53.

Power of Central Government to make rules.

(1)

The Central Government may, by notification, make rules to carry out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:?

(a)

the manner of appointing ten Members of the Commission on rotational basis from amongst the nominees of the States and Union territories in the Dental Advisory Council under clause (b) of sub-section (4) of section 4;

(b)

the manner of appointing nine members of the Commission under clause (c) of sub-section (4) of section 4;

(c)

the manner of nominating two members from amongst dental faculties, under clause (d) of sub-section (4) of section 4;

(d)

the salaries and allowances payable to, and other terms and conditions of service of the Chairperson and Members under sub-section (4) of section 6;

(e)

the form and the manner of making declaration under sub-section (6) of section 6;

(f)

the qualifications and experience to be possessed by the Secretary of the Commission under sub-section (2) of section 8;

(g)

the salaries and allowances payable to, and other terms and conditions of service of the Secretary, officers and other employees of the Commission under sub-section (7) of section 8;

(h)

the other powers and functions of the Commission under clause (p) of sub-section (2) of section 10;

(i)

the dental qualifications and experience to be possessed by a member under the second proviso to clause (d) of sub-section (2) of section 11;

(j)

the manner of choosing second part-time Members under sub-section (5) of section 17;

(k)

the salaries and allowances payable to, and other terms and conditions of service of the President and Members of an Autonomous Board and the allowances payable to part-time Members under sub-section (2) of section 19;

(l)

the form for preparing annual statement of accounts under sub-section (1) of section 40;

(m)

the time within which, and the form and the manner in which, the reports and statements shall be furnished by the Commission under sub-section (1) of section 41;

(n)

the form and the time for preparing annual report under sub-section (2) of section 41;

(o)

the amount of compensation payable to employees under the proviso to sub-section (5) of section 58;

(p)

any other matter in respect of which provision is to be made by rules.

54.

Power to make regulations.

(1)

The Commission may, after previous publication, by notification, make regulations consistent with this Act and the rules made thereunder to carry out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:—

(a)

the functions to be discharged by the Secretary of the Commission under sub-section (5) of section 8;

(b)

the procedure in accordance with which experts, consultants and professionals may be engaged, or the experts and domain specialists from foreign country may be invited, and the number of such experts and professionals under sub-section (8) of section 8;

(c)

the procedure to be followed at the meetings of the Commission under sub-section (3) of section 9;

(d)

the quality and standards to be maintained in dental education under clause (a) of sub-section (2) of section 10;

(e)

the manner of regulating dental institutions, dental research, dentists and dental auxiliaries under clause (c) of sub-section (2) of section 10;

(f)

the manner of functioning of the Commission, the Autonomous Boards, the State Dental Councils and the Joint Dental Councils under clause (h) of sub-section (2) of section 10;

(g)

the procedure to be followed at the meetings of the Dental Advisory Council under sub-section (3) of section 13;

(h)

the manner of conducting common counselling by the designated authority for admission to the undergraduate and postgraduate dental education under sub-section (3) of section 14;

(i)

the designated authority, and the manner for conducting the National Exit Test (Dental) under sub-section (2) of section 15;

(j)

the manner in which a person with foreign dental qualification shall qualify National Exit Test (Dental) and the manner of his enrolment in the State Register or the National Register under sub-section (4) of section 15;

(k)

the manner in which admission to the postgraduate dental education shall be made on the basis of National Exit Test (Dental) under sub-section (5) of section 15;

(l)

the manner of conducting common counselling by the designated authority for admission to the postgraduate dental education under sub-section (6) of section 15;

- (m)
the manner of nominating one member from amongst personnel of each category of the dental auxiliaries to the advisory committee for the Under-Graduate and Post-Graduate Dental Education Board under the proviso to sub-section (1) of section 20;
- (n)
the number of, and the manner in which, the experts, professionals, officers and other employees, including the experts and domain specialists from foreign countries invited by the Commission, under sub-section (8) of section 8 shall be made available by the Commission to the Autonomous Boards under section 21;
- (o)
the competency based dynamic curriculum at undergraduate level and postgraduate level under clause (b) of sub-section (1) of section 24;
- (p)
the manner of imparting undergraduate courses and postgraduate courses for dentists and dental auxiliaries by dental institutions under clause (c) of sub-section (1) of section 24;
- (q)
the minimum requirements and standards for conducting courses and examinations at undergraduate level and postgraduate level for dentists and dental auxiliaries in dental institutions under clause (d) of sub-section (1) of section 24;
- (r)
the standards and norms for infrastructure, faculty and quality of education at undergraduate level and postgraduate level for dentists and dental auxiliaries in dental institutions under clause (e) of sub-section (1) of section 24;
- (s)
the procedure for assessing and rating of dental institutions under clause (a) of sub-section (1) of section 25;
- (t)
the manner of carrying out inspections of dental institutions for assessing and rating such institutions under clause (c) of sub-section (1) of section 25;
- (u)
the manner of conducting, and the manner of empaneling independent rating agencies to conduct assessment and rating of dental institutions and the time period for such assessment and rating under clause (d) of sub-section (1) of section 25;
- (v)
the manner of making available on website or in public domain the assessment and ratings of dental institutions under clause (e) of sub-section (1) of section 25;
- (w)
the measures to be taken against a dental institution for failure to maintain the minimum essential standards under clause (f) of sub-section (1) of section 25;
- (x)
the manner of regulating professional conduct and promoting dental ethics under clause (b) of sub-section (1) of section 26;
- (y)
the form of scheme, the particulars thereof, the fee to be accompanied and the manner of submitting scheme for establishing new dental college or for starting any postgraduate course or for increasing number of seats under sub-section (2) of section 27;
- (z)
the manner of preferring an appeal to the Commission for approval of the scheme under sub-section (5) of section 27;
- (za)
the other factors under clause (d) of section 28;
- (zb)
the manner of taking disciplinary action by a State Dental Council for professional or ethical misconduct of registered dentist or professional and the procedure for receiving complaints and grievances by Ethics and Dental Registration Board under sub-section (4) of section 29;

(zc)

the act of commission or omission which amounts to professional or ethical misconduct under clause (b) of the Explanation to section 29;

(zd)

other particulars to be contained in the National Register for Dentists under sub-section (1) of section 30;

(ze)

the particulars to be contained in the National Register for Dental Auxiliaries under sub-section (2) of section 30;

(zf)

the form, including the electronic form and the manner of maintaining the National Registers, under sub-section (3) of section 30;

(zg)

the manner in which any name or qualification may be added to, or removed from, the National Register and the grounds for removal thereof, under sub-section (4) of section 30;

(zh)

the manner of entering the title, diploma or qualification in the State Register or the National Register, under sub-section (3) of section 31;

(zi)

the period for which, and the manner in which, a foreign citizen who is enrolled in his country as a dentist may be permitted temporary registration in India, under the proviso to sub-section (1) of section 32;

(zj)

the manner of listing and maintaining dental qualifications granted by a University or dental institution in India under sub-section (1) of section 33;

(zk)

the manner of examining the application for grant of recognition under sub-section (3) of section 33;

(zl)

the manner of including a dental qualification in the list maintained by the Board under sub-section (4) of section 33;

(zm)

the manner of preferring an appeal to the Commission for grant of recognition under sub-section (5) of section 33;

(zn)

the manner of listing and maintaining dental qualifications which have been granted recognition before the date of commencement of this Act under sub-section (8) of section 33;

(zo)

the designated authority for conducting Screening Test for higher dental qualification, and the manner of conducting the Screening Test under sub-section (2) of section 34;

(zp)

the manner of listing and maintaining dental qualifications which have been granted recognition before the date of commencement of this Act under sub-section (3) of section 34.

55. Rules and regulations to be laid before Parliament.

Every rule and every regulation made, and every notification issued, under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or notification or both Houses agree that the rule or regulation or notification should not be made, the rule or regulation or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation or notification.

56.

Power of State Government to make rules.

(1)

The State Government may, by notification, make rules to carry out the provisions of section 29 and section 48 of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing powers under sub-section (1), such rules may provide for the following matters, namely:—

(a)

the salary and allowances payable to, and other conditions of service of, the Chairperson and Members of the State Dental Council and Joint Dental Council;

(b)

the manner of filling up of vacancies arising in the State Dental Council and Joint Dental Council;

(c)

any other matter in respect of which provision is to be made by rules.

(3)

Every rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before each House of State Legislature, where there are two Houses and where there is one House of State Legislature, before that House.

57.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act, as may appear to it be necessary, for removing the difficulty:

Provided that no order shall be made under this section after the expiry of a period of two years from the commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

58.

Repeal and saving

(1)

With effect from such date as the Central Government may appoint in this behalf, the Dentists Act, 1948 shall stand repealed and the Dental Council of India constituted under section 3 of the said Act shall stand dissolved.

(2)

Notwithstanding the repeal of the Act referred to in sub-section (1), it shall not affect,—

(a)

the previous operation of the Act so repealed or anything duly done or suffered thereunder; or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under the Act so repealed; or

(c)

any penalty incurred in respect of any contravention under the Act so repealed; or

(d)

any proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty as aforesaid, and any such proceeding or remedy may be instituted, continued or enforced, and any such penalty may be imposed as if that Act had not been repealed.

(3)

On the dissolution of the Dental Council of India, the person acting as the President and Members of the Dental Council of India holding office as such immediately before such dissolution shall vacate their respective offices and such President and Members shall be entitled to claim compensation not exceeding three months' pay and allowances for the premature termination of term of their office or of any contract of service.

(4)

Every officer who has been appointed on deputation basis in the Dental Council of India shall, on its dissolution, stand reverted to his parent cadre, Ministry or Department, as the case may be.

(5)

The services of other employees who have been, before the dissolution of the Dental Council of India, employed on

regular basis by the Dental Council of India, shall continue for no longer than one year after the commencement of this Act, as an interim arrangement and thereafter, further continuity or otherwise of their services shall be determined by the Commission on the basis of their performance appraisal or evaluation:

Provided that such employees of the erstwhile Dental Council of India shall be entitled to such compensation which shall not be less three months' pay and allowances, as may be prescribed.

(6)

Notwithstanding the repeal of the aforesaid enactment, any order made, any licence to practice issued, any registration made, any permission to start new dental college or to start higher course of studies or for increase in the admission capacity granted, any recognition of dental qualifications granted, under the Dentists Act, 1948, which are in force as on the date of commencement of this Act, shall continue to be in force till the date of their expiry for all purposes, as if they had been issued or granted under the provisions of this Act or the rules or regulations made thereunder.

59.

Transitory provisions.

(1)

The Commission shall be the successor in interest to the Dental Council of India including its subsidiaries or owned trusts and all the assets and liabilities of the Dental Council of India shall be deemed to have been transferred to the Commission.

(2)

Notwithstanding the repeal of the Dentists Act, 1948, the educational standards, requirements and other provisions of the said Act and the rules and regulations made thereunder shall continue to be in force and operate till new standards or requirements are specified under this Act or the rules and regulations made thereunder:

Provided that anything done or any action taken as regards the educational standards and requirements under the enactment under repeal and the rules and regulations made thereunder shall be deemed to have been done or taken under the corresponding provisions of this Act and shall continue in force accordingly unless and until superseded by anything done or by any action taken under this Act.

(3)

Notwithstanding the repeal of the Dentists Act, 1948, the State Council and the Joint State Council constituted respectively under section 21 and section 23 of the said Act shall continue to operate until a new State Dental Council is established by the State Government in accordance with the provisions of section 29 of this Act.

SCHEDULE

(See section 35) LIST OF CATEGORIES OF DENTAL QUALIFICATIONS GRANTED BY STATUTORY OR OTHER DENTAL

BODY IN INDIA

Sl.No. Categories of dental qualifications

1. All dental qualifications granted by All India Institutes of Medical Sciences

2.

All dental qualifications granted by the Oral Health Sciences Centre, Post Graduate Institute of Medical Education and Research, Chandigarh.

3.

All dental qualifications granted by the Jawaharlal Institute of Postgraduate Medical Education and Research, Puducherry.

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DR.

REETA VASISHTA, Secretary to the Govt. of India.

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